

Asma Begum v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 February 2025 · 2025:AHC:28546-DB · Writ-C No. 38773 of 2024 · **Writ disposed; authority directed to decide the pending Rule 6.5 objection within six weeks.**

HEADNOTE

Where a consumer's objection under Rule 6.5 of the Electricity Supply Code, 2005 remains undecided, the writ court will dispose of the petition by directing the authority concerned to decide that objection expeditiously, preferably within six weeks, without examining the merits of the bill or the objection.

FACTUAL SUMMARY

Asma Begum filed a writ petition against the State of Uttar Pradesh and two other respondents. She had raised an objection under Rule 6.5 of the Electricity Supply Code, 2005. The authority concerned had not decided that objection. Counsel for the petitioner and for respondent nos. 2 and 3 were heard. The case before the Court was the inaction on the pending statutory objection, not the merits of any demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending 6.5 objection

HOLDING

Where an objection under Rule 6.5 of the Electricity Supply Code, 2005 has not been decided, the writ court will dispose of the petition by directing the authority concerned to decide that objection expeditiously, preferably within six weeks. ¶ 2-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RULE 6.5 OBJECTION

Left to the authority concerned; the Court did not examine the bill or the objection. ¶ 2-3